
A Regulatory Feasibility Evaluation Framework to Support Practical Medical Device Research Projects

연구과제 기반 실질적 의료기기 지원을 위한 규제 실현가능성 평가체계 제안

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Abstract

Korea has made substantial national investments in science and technology research, with total government research and development (R&D) expenditure reaching tens of trillions of Korean won annually. In parallel, policy-level programs supporting medical device regulatory approval and commercialization have been institutionalized, aiming to bridge the gap between research outputs and clinical market entry. Nevertheless, a significant proportion of medical device research projects still fail to translate into authorized products, suggesting that regulatory feasibility is insufficiently evaluated during early research planning stages. In this study, we propose a regulatory feasibility scoring framework that systematically assesses intended use, approval classification, regulatory pathway complexity, and clinical and performance evidence requirements. Applying the framework to representative medical device and in vitro diagnostic use cases, we demonstrate how early-stage feasibility assessment can improve alignment between national R&D investment, regulatory requirements, and realistic market entry timelines.

1 Introduction

Korea's national investment in science and technology research is substantial and continues to grow. According to government budget disclosures, the Ministry of Science and ICT (MSIT) alone was allocated approximately **23.7 trillion KRW** in total budget for fiscal year 2026, including **11.8 trillion KRW dedicated to R&D**, contributing to an overall national R&D expenditure of approximately **35.5 trillion KRW**. These figures indicate that even marginal inefficiencies in the translation of research outcomes to practical applications may result in significant systemic loss of public resources.

Within this broader R&D ecosystem, medical devices represent a strategically important sector due to their direct linkage between technological innovation, regulatory authorization, and clinical application. Recognizing persistent translational barriers, the Korean government has established explicit **policy-level support mechanisms for medical device licensing and market entry**. Representative examples include the *Pan-ministerial Medical Device R&D Program (2020–2025)*, a large-scale initiative with a total budget of approximately **1.2 trillion KRW**, designed to support the full development lifecycle from research and development to regulatory approval and commercialization. In addition, targeted regulatory support programs, such as international certification and approval assistance initiatives, have been implemented with dedicated multi-year funding to facilitate global market access.

Despite the existence of these policy instruments, the success rate of medical device authorization and commercialization remains uneven. This discrepancy suggests that policy support alone is insufficient if

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regulatory requirements are not systematically integrated into early research design. In particular, research proposals often emphasize technological novelty or scientific contribution without adequately accounting for intended use definition, approval classification, regulatory pathway complexity, or evidence generation requirements. As a result, downstream regulatory obstacles emerge late in development, increasing cost, delay, and project attrition.

Accordingly, this study argues that **explicit evaluation of regulatory feasibility should be treated as a core research planning activity**, rather than a post hoc compliance exercise. To address this need, we propose a structured scoring framework that enables comparative assessment of regulatory feasibility across different medical device and in vitro diagnostic intended uses. By quantifying regulatory burden and approval complexity at an early stage, the framework aims to support more realistic research planning, improve alignment with existing licensing support policies, and ultimately enhance the efficiency of national R&D investment.

2 Related Work and Regulatory Basis

2.1 Regulatory Framework for Medical Device Licensing in Korea

In Korea, the regulatory approval of medical devices is governed by the *Regulations on Medical Device Licensing, Reporting, and Review* administered by the Ministry of Food and Drug Safety (MFDS[†]). Unlike purely technology-driven evaluation frameworks, the Korean regulatory system explicitly anchors approval decisions in **intended use**, **degree of modification**, and **evidence generation requirements**, which are codified in legally binding annex tables.

Annex Table 5^{††} of the regulations establishes the fundamental logic for determining product equivalence by evaluating whether a device's intended use, principle of operation, and key technological characteristics are comparable to those of an already approved product. Under this framework, devices are classified as *equivalent products*, *modified products*, or *new products*, and this classification directly determines the regulatory pathway and review burden. Importantly, equivalence is assessed not only on material or structural similarity but also on whether the intended clinical use remains unchanged, highlighting the central regulatory role of intended use definition.

2.2 Submission Scope and Clinical Evidence Triggers

Annex Table 7^{†††} specifies the scope of technical documentation required for licensing, reporting, and review according to the product classification outcome. The table delineates which elements—such as performance testing, safety data, biocompatibility evaluation, and clinical evidence—must be submitted for each category. Notably, even products classified as modified may be required to submit clinical data when performance or safety cannot be sufficiently demonstrated through non-clinical testing alone.

This regulatory structure implies that clinical evidence requirements are not binary but conditional, depending on the interaction between intended use, degree of technological modification, and residual risk. As a result, regulatory burden can increase substantially even for devices that appear technologically incremental if the intended use is broadened or reinterpreted.

2.3 Stage-Based Approval and Review Process

Annex Table 15^{††††} further formalizes the approval process into a stage-based structure, typically progressing from design and development review, through performance and safety verification, to clinical evaluation where applicable. This staged approach provides a regulatory roadmap that implicitly defines expected timelines, decision points, and potential escalation triggers, particularly when a device advances from non-clinical to clinical evaluation phases.

The existence of this staged structure demonstrates that regulatory approval is not a single event but a cumulative process, where early design and intended use decisions exert long-term influence on approval complexity and duration. Consequently, failure to account for these stages during early research planning may result in downstream regulatory delays or the need for unanticipated evidence generation.

2.4 Public Approval Data as Empirical Regulatory Evidence

In addition to formal regulations, the **Medical Device Safety Information Disclosure Database (의료기기 안심책방*)** operated by MFDS provides publicly accessible records of approved devices, including product classification, intended use descriptions, and approval status.

[†]식품의약품안전처고시 제2026-6호 의료기기 허가·신고·심사 등에 관한 규정

^{††}식품의약품안전처고시 제2026-6호 의료기기 허가·신고·심사 등에 관한 규정 [별표 5] 동등제품 판단기준(제23조 관련)

^{†††}식품의약품안전처고시 제2026-6호 의료기기 허가·신고·심사 등에 관한 규정 [별표 7] 기술문서 등 제출 자료의 범위(제28조 관련)

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*<https://emedi.mfds.go.kr/search/data/MNU20237>

This database serves as an empirical reference for understanding how regulatory principles outlined in Annex Tables 5, 7, and 17 are applied in practice.

Analysis of disclosed approval information reveals consistent patterns in how intended use wording influences classification outcomes and submission requirements, reinforcing the regulatory logic articulated in the formal annex tables. As such, the database functions as an important complementary resource for regulatory feasibility assessment and comparative analysis.

2.5 Implications for Regulatory Feasibility Evaluation

Taken together, Annex Tables 5, 7^{††}, and 15^{†††} and the public approval disclosure database demonstrate that Korea already possesses a **highly structured, rule-based regulatory framework** for medical device approval. However, these regulatory criteria are typically applied *after* research directions and product concepts have been fixed. This temporal separation limits their utility as proactive decision-making tools during early research planning.

Therefore, while policy and regulatory support for medical device licensing clearly exists, the literature and regulatory documents collectively indicate the need for **systematic evaluation of licensing feasibility at the research design stage**. Explicitly translating regulatory rules into evaluative frameworks can help align research objectives with approval realities, reduce late-stage attrition, and improve the efficiency of publicly funded medical device research.

3 Methods

3.1 Conceptual Translation of Regulatory Logic into Scoring Rules

The regulatory feasibility scoring framework proposed in this study was developed by explicitly translating the Korean medical device regulatory logic into quantitative evaluation rules. Rather than introducing new regulatory criteria, the framework is grounded entirely in existing legal and administrative structures defined in the Regulations on Medical Device Licensing, Reporting, and Review, particularly Annex Tables 5^{††}, 7^{††}, and 15^{†††}, and empirical approval patterns observed in the Medical Device Safety Information Disclosure Database.

Annex Table 5^{††} establishes intended use equivalence as the primary determinant of regulatory classification, distinguishing equivalent products, modified products, and new products. Annex Table 7^{††} specifies the scope of technical documentation required for each classification, including conditions under which clinical evidence is triggered. Annex Table 15^{†††} further structures the approval process into sequential stages, implicitly reflecting increasing regulatory burden and expected development timelines. Together, these regulatory elements form a decision logic that can be systematically mapped to evaluable dimensions.

3.2 Definition of Evaluation Dimensions

Based on the regulatory structure, four core dimensions were defined to represent regulatory feasibility:

Clarity of Intended Use Definition

Approval Classification Difficulty

Regulatory Pathway and Submission Burden

Clinical and Performance Evidence Requirements

Each dimension reflects a distinct regulatory decision layer and is directly traceable to a specific annex table or regulatory practice.

3.3 Scoring Rule Design

Each evaluation dimension was assigned a maximum score of 25 points, resulting in a total feasibility score ranging from 0 to 100. Equal weighting was applied to avoid implicit prioritization of any single

regulatory aspect and to maintain interpretability.

3.3.1 Intended Use Clarity (0–25)

Scoring for intended use clarity was revised to be based on the degree to which the stated intended use could be **directly and unambiguously mapped to an existing product category and risk class explicitly listed in the Korean medical device classification tables**, rather than on equivalence determination criteria.

Specifically, intended uses were evaluated according to their alignment with predefined device categories and classes as specified in **Annex 1[‡] of the Regulation on Medical Device Classification** and, where applicable, the **Annex^{‡‡} on In Vitro Diagnostic Medical Device Classification**. Intended uses that corresponded to a **single, clearly defined product code and risk class** without requiring interpretative judgment received higher scores. In contrast, intended uses spanning multiple anatomical sites, therapeutic purposes, or biological interactions—where classification ambiguity or class escalation was likely—were assigned lower scores due to increased regulatory uncertainty.

This revision reflects a classification-first regulatory perspective, emphasizing **predictability of regulatory categorization** as a primary determinant of feasibility, independent of claims of equivalence.

3.3.2 Approval Classification Difficulty (0–25)

Approval classification scores were derived from Annex Table 5^{††} equivalence logic. Products reasonably expected to qualify as equivalent devices were assigned the highest scores, while those likely to be classified as modified products received intermediate scores. Intended uses that implied new clinical functions or therapeutic effects, thereby increasing the likelihood of classification as new products, were assigned the lowest scores.

3.3.3 Regulatory Pathway and Submission Burden (0–25)

This dimension reflects the documentation scope specified in Annex Table 7^{†††}. Scores were inversely proportional to the expected volume and complexity of required submissions. Products requiring only basic technical documentation and non-clinical performance testing received higher scores, whereas those requiring extensive safety, biocompatibility, or system-level validation received lower scores.

3.3.4 Clinical and Performance Evidence Requirements (0–25)

Clinical and performance evidence scoring was informed by Annex Table 7^{†††} triggers and the stage-based escalation described in Annex Table 15^{††††}. Products for which clinical evidence could be waived or replaced by analytical or performance validation were assigned higher scores. Conversely, intended uses likely to require clinical investigation or confirmatory clinical data were assigned lower scores due to increased development time and uncertainty.

3.4 Output Interpretation

Large language models (LLMs) were used as auxiliary tools to assist in interpreting regulatory text, standardizing intended use descriptions, and checking internal consistency across scoring dimensions. AI was not used to generate regulatory decisions but to support reproducible application of predefined scoring rules across multiple use cases. This approach enabled scalable analysis while preserving regulatory traceability and human interpretability.

The final regulatory feasibility score represents a comparative indicator of expected approval complexity and market entry readiness. Higher scores indicate clearer regulatory pathways and lower evidence burdens, while lower scores reflect increased uncertainty, extended timelines, and higher licensing risk. The framework is designed for early-stage research planning and comparative assessment, not as a substitute for formal regulatory consultation.

[‡]식품의약품안전처고시 제2025-23호 의료기기 품목 및 품목별 등급에 관한 규정 [별표 1] 의료기기 품목 및 품목별 등급

^{‡‡}식품의약품안전처고시 제2025-95호 체외진단의료기기 품목 및 품목별 등급에 관한 규정 [별표]

4 Results

4.1 Overview of Regulatory Feasibility Assessment

The proposed regulatory feasibility scoring framework was applied to three representative intended uses spanning low-risk medical devices, in vitro diagnostic reagents, and implantable biomaterials. These use cases were selected to reflect distinct regulatory profiles under the Korean medical device approval system and to evaluate the framework's ability to differentiate feasibility across heterogeneous product categories.

For each intended use, scores were calculated across four regulatory dimensions—intended use clarity, approval classification difficulty, regulatory pathway and submission burden, and clinical and performance evidence requirements—resulting in a total feasibility score ranging from 0 to 100.

4.2 Case 1: Sterilized Needle Used to Inject Drugs or Aspirate Body Fluids

Total score: 98 / 100

Regulatory interpretation summary

This product represents a typical **single-use invasive medical device** with transient tissue contact. The intended use is highly standardized, and numerous predicate products have already been approved under the same item classification. Clinical investigation is not required, and approval relies primarily on conformity to established standards.

A. Intended use clarity (25 / 25)

The intended use—injecting drugs or aspirating body fluids—is explicit, function-based, and universally understood. The target, method of use, and anatomical interaction are fully standardized, allowing direct mapping to a single item classification without ambiguity.

B. Approval classification difficulty (25 / 25)

The product is highly likely to be classified as an equivalent device due to identical intended use, principle of operation, and material characteristics compared to existing approved products.

C. Regulatory pathway and submission burden (23 / 25)

Submission requirements are limited to basic technical documentation, sterilization validation, and biocompatibility testing. Most advanced documentation elements are exempt.

D. Clinical and performance evidence risk (25 / 25)

Clinical studies are not required. Compliance can be demonstrated through standardized physical and performance testing alone.

4.3 Case 2: NGS Reagent for Detecting Histocompatibility Antigen (HLA) Class I

Total score: 80 / 100

Regulatory interpretation summary

This product is classified as an **in vitro diagnostic medical device reagent**. While the analytical target and method are clearly defined, regulatory interpretation depends on diagnostic purpose and clinical context, introducing moderate classification complexity.

A. Intended use clarity (20 / 25)

The detection of HLA Class I antigens using NGS is analytically precise. However, regulatory clarity is slightly reduced because classification may vary depending on whether the test is positioned for transplantation compatibility assessment, supplementary diagnosis, or other clinical contexts.

B. Approval classification difficulty (20 / 25)

The product generally aligns with existing IVD item categories, but may fall at the boundary between equivalent and modified devices depending on panel composition, interpretation claims, and clinical application.

C. Regulatory pathway and submission burden (18 / 25)

Required documentation focuses on analytical performance (accuracy, precision, sensitivity, specificity, and interference). The burden is moderate but predictable within the IVD regulatory framework.

D. Clinical and performance evidence risk (22 / 25)

As a qualitative or supportive diagnostic tool, clinical investigation requirements are limited. Performance validation is largely analytical rather than clinical.

4.4 Case 3: Collagen-Containing Medical Device for Skin Regeneration

Total score: 44 / 100

Regulatory interpretation summary

This product exhibits the highest regulatory uncertainty. The intended use implies **therapeutic and regenerative effects**, and the device involves prolonged interaction with biological tissue. Classification often requires case-by-case interpretation and extensive supporting evidence.

A. Intended use clarity (12 / 25)

“Skin regeneration” represents a broad and outcome-oriented claim rather than a narrowly defined function. The intended use does not map directly to a single item classification and may be interpreted across multiple categories (implantable device, tissue-interacting material, regenerative scaffold).

B. Approval classification difficulty (10 / 25)

Due to biological interaction and regenerative implications, the product is likely to be classified as a modified or new device, rather than an equivalent product.

C. Regulatory pathway and submission burden (12 / 25)

Extensive documentation is required, including biocompatibility, degradation behavior, material characterization, and potentially long-term safety data.

D. Clinical and performance evidence risk (10 / 25)

Given invasive application and regenerative claims, escalation to clinical evaluation is highly likely, significantly increasing development time and regulatory risk.

4.5 Implications of Results

The results of this study demonstrate that regulatory feasibility is not a uniform property of medical device development, but a function of how clearly the intended use is defined and how predictably it aligns with existing regulatory classifications. Importantly, not all regulatory approvals require clinical trials, and premature assumptions regarding clinical evidence often lead to inefficient allocation of research and development resources.

Recent policy developments in the United States illustrate how field-specific artificial intelligence tools are increasingly used to support regulatory and administrative decision-making. For example, the U.S. Food and Drug Administration (FDA) has introduced Elsa, an agency-wide generative AI tool designed to improve the efficiency of internal regulatory tasks such as clinical protocol review and performance optimization. Similarly, the Centers for Medicare & Medicaid Services (CMS) has deployed the WISER

model to identify and manage wasteful or inappropriate services through domain-specific AI applied to predefined policy objectives.

These examples highlight a common principle: AI systems deliver the greatest value when applied within clearly bounded regulatory contexts, where decision criteria and objectives are well defined. In the medical device domain, the intended use plays a role analogous to these policy objectives. Whether a temperature-controlled device is intended to store sandwiches or blood fundamentally alters the regulatory framework, evidence requirements, and scale of resources necessary to enter the regulated market. The findings of this study suggest that feasibility scoring based on intended use clarity can function as an early indicator of such downstream resource implications..

5 Discussion

An important implication of this study is that **not all medical device research projects require clinical trials**, nor should clinical validation be treated as a uniform or default endpoint in research funding and evaluation. In regulated development, the necessity and scale of clinical evidence are determined primarily by the **intended use and regulatory strategy**, rather than by technological novelty alone.

When approval support is an explicit objective of a research project, it becomes critical to distinguish whether the goal is to incrementally improve an existing product already in clinical use, or to introduce a device with a new regulatory positioning. These pathways entail markedly different regulatory burdens and **substantially different scales of clinical support**. In practice, approval-related support may range from projects requiring no clinical involvement and relying on equivalence or standards-based conformity, to projects necessitating limited clinical performance verification, and ultimately to projects that demand full-scale clinical investigations due to higher risk classification or novel intended use.

The results of this study suggest that failing to make such distinctions at the project evaluation stage can lead to inefficient allocation of regulatory and clinical resources. Overestimating clinical needs may divert funding toward unnecessary trials, while underestimating them may leave genuinely high-risk or innovative projects under-supported. By contrast, feasibility scoring based on intended use clarity enables a more **resource-rational regulatory strategy**, allowing funding bodies to align approval support and clinical investment with the actual regulatory requirements of each project.

In this sense, regulatory feasibility assessment functions not as a gatekeeping mechanism, but as an early decision-support tool for estimating the **appropriate scale of approval-related and clinical support**. This aligns with recent policy trends toward targeted, domain-specific decision support systems, where the objective is not to standardize outcomes, but to improve transparency and predictability in complex regulatory environments.

6 Limitations and Future Work

This study has several limitations. First, the feasibility scoring framework is based on current regulatory classification tables and publicly disclosed approval data, which may evolve over time as regulations are revised or new device categories are introduced. Second, the scoring system emphasizes intended use clarity and classification predictability and does not explicitly model post-market obligations, reimbursement considerations, or international regulatory divergence.

Future work may extend the framework by incorporating dynamic regulatory updates, cross-jurisdictional comparisons, and post-market surveillance requirements. In addition, integration of domain-specific AI tools—similar in concept to FDA’s Elsa or CMS’s WISeR—could enable semi-automated feasibility assessment at scale, supporting portfolio-level analysis for funding agencies and research institutions.

Ultimately, the framework presented here is not intended to replace regulatory review or expert

consultation, but to provide a structured, transparent mechanism for anticipating regulatory feasibility and resource requirements at the earliest stages of medical device research.

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The author declares no competing financial interests or personal relationships that could have appeared to influence the work reported in this paper. The use of AI tools did not involve proprietary data, confidential information, or restricted regulatory materials.

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